

The Assam Cinemas (Regulation) Rules, 1960

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[The Assam Cinemas \(Regulation\) Rules, 1960](#)

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[The Assam Cinemas \(Regulation\) Rules, 1960](#)

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[The Assam Cinemas \(Regulation\) Rules, 1960](#)

[Published vide Notification No. GAG 254/59/64, dated the 16th December, 1960](#)

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[No. GAG 254/59/64, dated the 16th December, 1960. - In exercise of the powers conferred by Section 10 of the Assam Cinemas \(Regulation\) Act, 1953 \(Assam Act XIV of 1953\), the Governor of Assam hereby makes the following rules for the purpose of carrying into effect the provisions of the said Act namely:](#)

[Part I](#)

[Introductory](#)

[1.](#)

[Short title and extent.](#)

[\(1\)](#)

These rules may be called the Assam Cinemas (Regulation) Rules, 1960.

(2)

They shall apply to all exhibitions by means of cinematograph in the State of Assam.

(3)

They shall come into force at once.

2.

Definitions.

- In these Rules, unless there is anything repugnant in the subject or context,-

(i)

"Act" means the Assam Cinemas (Regulation) Act, 1953;

(ii)

"auditorium" means the portion of the licensed place in which accommodation is provided for the audience or spectators to view the cinematograph exhibition;

(iii)

"enclosure" means that portion of the licensed place in which the cinematograph apparatus is erected;

(iv)

"exit" includes an emergency exit and any entrance usable by the public as an exit;

(v)

"Government" means Government of the State of Assam;

(vi)

"licence" means a licence granted under the provisions of the Act;

(vii)

"licensee" means a person who has been granted a licence and includes his agents and managers;

(viii)

"person" means any adult male or female individual and includes any company or association or body of individuals, whether incorporated or not.

3.

Kinds of licences.

- There shall be four kinds of licences, namely for-

(i)

permanent cinemas;

(ii)

temporary indoor cinemas;

(iii)

temporary open air cinemas; and

(iv)

touring cinemas.

4.

Construction of cinema building.

(1)

Any person desiring to put up a building or structure to be used as a permanent cinema house shall make an application in writing to the Licensing Authority specifying the site where the cinema house is proposed to be put up. Each such application shall be accompanied by-

(a)

"No application certificate. A certificate from the Municipal Town Committee, Gram Panchayat, District Council or Development Authority wherever such authority exists having jurisdiction over the area that there is no objection to the erection of the proposed cinema building;

(b)

complete plans, elevations and sections in duplicate, of the premises and all erections or buildings thereon drawn correctly to the scale of one-eighth of an inch to one foot and showing the width of all stairways, and the number of steps in each, the width of corridors, gangways and door-ways, the height of the galleries or tiers and the details of the

cinematograph and of the plant or the generation or conversion of electrical energy;

(c)

a site plan in duplicate on a separate sheet drawn to the scale of one-fortieth of an inch to one foot showing the position of the premises in relation to any adjacent premises and to the public thoroughfares upon which the site of the premises abuts, and the arrangements, proposed for the parking of motor car and other vehicle;

(d)

specifications of the various materials proposed to be used in the construction of the building.

(2)

On receipt of the application and the plans, the Licensing Authority shall forward the same to the Executive Engineer concerned for approval and the applicant shall be bound to carry out such additions and alterations in the plans as may be directed by the Executive Engineer concerned before the plans are finally approved by him.

After the plans are finally approved by the Executive Engineer concerned, the Licensing Authority with the prior approval of the State Government may grant in Form A appended to these Rules, a "No objection certificate" in writing to the applicant to put up the cinema house in accordance with the plans finally approved;

Provided that such a "No objection certificate" does by no means guarantee the issue of a cinema licence which depend on separate application and fulfilment of the requirement of prescribed rules and instructions;

Provided further that in the case of a licence either for temporary open air cinema or or touring cinema, the condition of furnishing a "No objection certificate" as required under Rule 11 (2) (ii) and Rule 14 (2) (ii) respectively may be relaxed by the Licensing Authority to such extent as may be considered necessary having due regard to the safety measures or the spectators.

5.

Application for licence.

(1)

Every application for the grant or renewal of licence shall be in writing and shall be signed by the applicant and submitted to the Licensing Authority.

Procedure for application. (2) Application for the grant as distinct from the renewal of a permanent cinema licence shall be accompanied by-

(a)

full particulars regarding the ownership of, and all rights in, the premises and in the cinematograph apparatus to be used therein;

(b)

a true copy of the 'No objection certificate' under sub-rule (2) of Rule 4;

(c)

certificate from the Executive Engineer. P.W.D., of the area that the rules relating to the structural features of the building have been duly complied with;

(d)

certificate from the Electricity Department of the Government that the electrical installations conform to the required standard and the existing rules;

(e)

certificate from the District Officer or any other competent authority of Public Health Department that the arrangements for sanitation conform to the requirements of the rules;

(f)

an "Approved Films Exhibition Certificate" from the Officer-in-charge of Distribution, Film Division, Ministry of Information and Broadcasting, Government of India to the effect that the arrangements have been made for getting regular supply of 'approved films' for the duration of the period for which licence is applied for;

(g)

a treasury receipt for the payment of fees for licence at the rate prescribed;

(h)

a clearance certificate from the Superintendent of Taxes of the area concerned to the effect that no amount of tax due under the Assam Amusement and Betting Tax Act, 1939, has retained unpaid.

6.

Licence for permanent cinema.

(1)

A licence for a permanent cinema may be granted by the Licensing Authority with the prior approval of the State Government in Form B appended to these Rules.

(2)

No permanent cinema house shall be allowed within a radius of one furlong from any existing hospital, educational institution, place of public worship, cremation ground, grave yard, cemetery or other standing permanent cinema house.

(3)

The licence granted shall be valid for three years unless renewed earlier by the Licensing Authority. It may be renewed on the expiry of the validity of the existing licence each time for a period not exceeding three years at a time, on receipt of any application in writing from the licensee for such renewal accompanied by a fee as provided in Rule 7, and the certificates mentioned in Rule 5. Application for renewal shall be submitted to the Licensing Authority at least one month before the date of expiry of the existing licence.

(4)

Any licensee who fails to apply for renewal of his licence with the requisite fee and certificates within fifteen days of the expiry of the term of the licence, shall, at the time of the renewal be required to pay a fine of Rs. 50.

7.

Fee for permanent cinema licence.

- A fee of Rs 1000 shall be levied for the grant of every licence for permanent cinema for the initial term of three years and subsequent each year perennial term, the year being calculated from the date of the licence. A fee of Rs. 100 shall be payable for a duplicate copy of the licence.

8.

Application for temporary indoor cinema licence.

- Any person desirous of obtaining a licence for temporary indoor cinema shall apply in writing with the particulars and certificates mentioned in Clauses (a), (c), (e), (f), (g) and (h) of Rule 5, to the Licensing Authority.

9.

Licence for temporary indoor cinema.

(1)

A licence for a temporary indoor cinema may be granted by the Licensing Authority, with the prior approval of the State Government in Form C appended to these Rules for a period not exceeding three months. This period may, however, be extended for a further period of three months on application being made, before the expiry of the current licence, fulfilling the requirements of Rule 8.

(2)

No licence for temporary indoor cinemas shall be issued in respect of any structure which is situated within a radius of one furlong from an existing hospital, educational institution, place of public worship, cremation ground, grave yard, cemetery [* * * *]

10.

Fee for temporary indoor cinema licence.

- A fee of Rs. 100 shall be levied for every month or part thereof for the period for which each temporary indoor cinema licence is valid.

A fee of Rs. 10 shall be payable for a duplicate copy of the licence.

11.

Application for temporary open air cinemas.

(1)

A person desirous of holding a licence for a temporary open or cinema shall apply to the Licensing Authority of the District within which it is proposed to hold the open air shows.

(2)

Every application for. a temporary open air cinema licence shall be accompanied by-

(i)

full particulars regarding the ownership of, and all rights in the cinematograph to be used;

(ii)

a true copy of the "No objection certificate" under sub-rule (2) of Rule 4;

(iii)

a treasury receipt for the payment of fees for licence at the rate prescribed;

(iv)

a clearance certificate from the Superintendent of Taxes of the area concerned to the effect that no amount of tax due under the Assam Amendment and Betting Tax Act, 1939, has remained unpaid.

12.

Licence for temporary open air cinemas.

- A licence for a temporary open air cinema may be granted by the Licensing Authority with the prior approval of the State Government, in Form D appended to these Rules, for a period not exceeding six months;

Provided that no such cinema shows shall be allowed within a radius of one furlong from an educational institution or place of public worship unless shows are held as a part of any function or festival of such educational institution or place of public worship.

13.

Fees for temporary open air cinemas.

- A fee of Rs. 50 shall be levied for every month or part thereof for the period for which each temporary open air cinema is valid.

A fee of Rs. 5 shall be payable for a duplicate copy of the licence.

14.

Application for touring cinemas.

(1)

A person desirous of holding a licence for a touring cinema shall apply to the Licensing Authority of the area in which it is proposed to hold the touring cinemas.

(2)

Every application for a touring cinema licence shall be accompanied by-

(i)

full particulars regarding the ownership of, and all rights in the cinematograph to be used;

(ii)

a true copy of the 'No objection certificate' under sub-rule (2) of Rule 4;

(iii)

a treasury receipt for the payment of fees for licence at the rate prescribed;

(iv)

a clearance certificate from the Superintendent of Taxes of the area concerned to the effect that no amount of tax due under the Assam Amusement and Betting Tax Act, 1939, has remained unpaid.

15.

Licence for touring cinemas.

- A licence for a touring cinema may be granted by the Licensing Authority with the prior approval of the State Government in Form D appended to these Rules, for a period not exceeding six months:

Provided that no such cinema shows shall be allowed within a radius of one furlong from any existing hospital, cemetery, grave yard or cremation ground or from an educational institution or place of public worship unless shows are held as a part of any function or festival of such educational institution or place of public worship.

16.

Fees for touring cinema licence.

- A fee of Rs. 50 shall be levied for every month or part thereof for the period for which each touring cinema is valid:

Provided that where licence for a touring cinema is for holding shows for the benefit of labour in industrial concerns or by academic or cultural institution or for exhibiting only educational films or for the benefit of the public and not for making any profit or gain, the State Government may exempt the levy of this licence fee.

A fee of Rs. 5 shall be payable for duplicate copy of the licence.

17.

Intimation for change of venue of exhibition.

- The holder of a licence for a tour in cinema, may shift the venue of the exhibition from place to place within the district

of issue, after giving the intimation of him programme and itinerary in advance to the Licensing Authority:

Provided that all the rules and safety requirements for holding cinema shows shall be duly observed and in case where it is proposed to install a touring cinema in a building, the provisions of Rule 8 shall be duly complied with by the licensee; Provided further that a touring cinema shall not be held for more than 15 days in any particular place where no other licence is being operated and a licence cannot be operated in more than one place at a time.

18.

Recommendations to State Government.

- If the Licensing Authority to whom an application or a licence is made, is satisfied that all the prescribed requirements of the rules have been fulfilled and the economy of the place justifies a cinema licence like the one applied for and there is no objection of any kind to the grant of a licence, it may forward the application to the State Government with its recommendations stating the period or which and any particular conditions or restrictions under which approval to the grant of a licence is recommended by it.

19.

Inspections.

(1)

The competent officers of the P.W.D., the Electricity Department and the Public Health Department having jurisdiction in the area shall make necessary inspections of the premises and the building in their respective spare of duty for the purpose of giving the prescribed certificates.

(2)

Defects revealed by such inspections shall be brought to the notice of the applicant of licence and of the Licensing Authority which may refuse to grant or renew the licence unless and until they are remedied to its satisfaction.

(3)

Fees of Rs. 50, Rs. 25 and Rs. 20 shall be payable respectively for each of the prescribed certificates by the Departments of Electricity, Public Health and Public Works. A duplicate copy of these certificates may be granted on payment of a fee of Rs. 2.

20.

Free access to Inspecting Officers.

(1)

The licence shall give free access to the cinema at all hours to the officers mentioned below:

(a)

The Licensing Authority or any officer nominated by it for the purpose of carrying out the duties of the Licensing Authority under the Act and the Rules and for checking that the provisions of the Act, the rules framed thereunder and the conditions of the licence are being duly complied with;

(b)

Any Police Officer who is required by a general or special order of the Licensing Authority or the District Superintendent of Police to attend the same;

(c)

The officers of competent jurisdiction of the Department of Public Health, Public Works and Electricity for the purpose of seeing that the provisions of these Rules are being duly observed; and

(d)

Regional Officer under the Central Board of Film Censors or an officer authorised by him in writing.

(2)

The licence and the plan and description, if any, attached thereto shall be produced on demand by the Licensing Authority or by any officer authorised by it or by these Rules to enter a place licensed under Section 5 of the Act.

The licensee, his servants and agents shall comply with orders issued by the Licensing Authority or by the Inspecting Officers from time to time or as occasion arises, for the safety or convenience of the public or for the preservation of order or of the public peace.

21.

Additions and alterations.

(1)

No addition to or alterations in any portion of any premises licensed under Section 5 of the Act, necessitated by fire any

other calamity or any other cause shall be made without the sanction of the Licensing Authority.

(2)

The licence shall give notice in writing to the Licensing Authority of his intention to make any such addition or alteration and such notice shall be accompanied by complete plans, elevations and sections and qualifications of the work proposed to be executed in the manner prescribed in Rule 4.

(3)

The work shall not be commenced until the consent of the Licensing Authority has been obtained and the Licensing Authority shall not give consent unless the Executive Engineer, P.W.D., certifies that the proposed addition or alteration is in accordance with these rules.

(4)

No addition to or alteration of any part of the cinematograph apparatus and its appurtenances or of the lighting or other electric arrangement shall be made within the sanction of the Licensing Authority.

The licence shall give notice in writing to the Licensing Authority of his intention to make any such addition or alteration and the Licensing Authority shall not give sanction thereto unless an officer of competent jurisdiction of the Department of Electricity certifies that the addition or alteration is in accordance with the provisions of these Rules.

Part II

Rules for the Licensing of Permanent Cinemas

22.

All buildings or other regulations for observance at places of public amusement imposed by the municipal bye-laws or by any other law, or rules made under any other law, for the time being in force, shall be strictly adhered to as far as they are not inconsistent with these Rules.

23.

A permanent licence shall only be granted or renewed in respect of a building which as regards its location, structure, fittings, electrical and other equipments complies with the provisions of the rules in the Part.

24.

Constructions.

- The floor, roof, private boxes, balconies, galleries, tiers, partitions, ventilators and every room, lobby, corridor, staircase and passage devoted to the use of the public shall be constructed of fire resisting materials.

25.

No portion of the place licensed shall be occupied or used as a hotel, boarding or lodging house, factory, workshop or manufacture or for storage purposes, except as the Licensing Authority may for the time being, allow, nor shall such place be used for residential purpose by day or night.

26.

Smoking prohibited.

(a)

No person shall smoke and no holder of a cinema licence or his agent or manager shall permit smoking in the auditorium

(b)

The number of persons admitted at any time into any part of the place licensed shall not exceed such number as may be specified in the licence. No person shall be permitted to remain in any of the intersecting gangways.

In order to ensure that the maximum number is not exceeded, and more particularly to facilitate checking at any time, the licensee shall issue tickets bearing serial numbers and the date and the number of the performance on the foils and counterfoils. After each performance the ticket books shall be marked 'closed' on the last counterfoil issued.

27.

Sale of tickets.

(a)

The licensee shall make arrangements to the satisfaction of the Licensing Authority for the sale of ticket for admission. Tickets shall be numbered to correspond to the number of the respective seat() in the auditorium and no more tickets shall be sold for any performance than there are seats available.

(b)

The licensee shall also make arrangements to the satisfaction of the Licensing Authority for the orderly marshaling of

persons desirous of purchasing tickets at the licensed place. Such number of booking office windows shall be provided in cinema house for the sale of tickets to the public as the Licensing Authority may determine in order to prevent congestion of entrances.

(c)

The licensee shall cause to be affixed and displayed in a conspicuous manner in the cinema premises or at the booking office a price-list showing the various rates charged for tickets or different classes which are kept, offered or exposed by him for sale and also the hours or business during which such sale will be effected and no sale shall be effected except during the hours notified;

Provided that advance booking seats shall be allowed on receipt of a reservation fee at the rate of 5 nP. for each ticket of lowest classes and 10 nP. for ticket for upper classes and arrangements therefor shall be made by the licensee during the hours of 9 a.m. to 6 p.m. in the booking counter or any other notified place in the cinema house.

(d)

Every licensee shall print or cause to be printed on the face of every ticket, pass or other evidence of the right of admission to be sold or kept, offered or exposed for sale, the price charged therefor plus entertainment tax, if any, and he shall at no time charge for any such ticket, pass or evidence of the right of admission a price in excess of what is printed therein.

The rates of payment for admission to the different classes in the licensed premises shall be determined by the Licensing Authority and those rates shall not be increased without an order in writing by the Licensing Authority permitting such increase.

(e)

Every ticket shall be torn into two parts at the time of admission, one part thereof, shall be retained by the gate-keeper, the other part remaining with the holder.

28.

Maintenance of records.

- Every licensee shall, at all times, keep and maintain full and up-to-date sets of records showing sale of ticket in each show and their rates showing separately, the taxes and fees realised and shall produce on demand all such records for inspection by an officer deputed for the purpose by the Licensing Authority.

29.

Deputation of responsible person.

(a)

In order to secure the safety of the audience, the licensee or some responsible agent or manager, duly conversant with the rules and nominated by him in writing for the purpose shall be specially instructed by the licensee or such agent or manager as to their requirements of these Rules.

Sufficient number of attendants shall remain on duty during the whole time that the premises are open to the public.

(b)

All persons responsible for or employed in connection with the exhibition shall take all due precautions for the prevention of accidents and shall abstain from any act whatever which tends to cause fire and is not reasonably necessary for the purpose of the exhibition. The licensee or the agent or manager nominated by him in writing as aforesaid shall see that the operators and every other person who may be called upon to handle inflammable film within the building for any purpose are fully instructed as to the dangers arising from the use of inflammable film, the precautions to be observed to prevent risk of ignition and the steps to be taken in the event of a film smouldering or catching fire.

30.

Exits.

(a)

In addition to the normal means of entrance to the auditorium, emergency exits shall be provided to the satisfaction of the Licensing Authority. There shall be at least one such emergency exit.

(b)

Two separate exits shall be provided to every floor or gallery and no stairway shall discharge into a passage or corridor against or across the direction of the exit; provided that the Licensing Authority may accept any other arrangements which are likely to ensure adequate safety.

(c)

Every exit from the auditorium shall provide a clear opening space of not less than 7 feet high and 5 feet wide.

(d)

All doors shall open outwards and there shall be no type of fastening on any door liable to become slipped, dropped, or secured during a performance.

If the doors be secured by locks, the lock shall be opened and the key removed during performance.

(e)

The doors when opened shall be such as not to obstruct the exit passage way on the outside.

(f)

There shall be no steps in such doorways nor shall any batten, carpet or other object be so placed at or near any doorway as to be likely to cause stumbling

(g)

No staircase, landing lobby, corridor or passage, not being an internal passage between rows of seats, intended for use as an exit shall be less than 5 feet wide and there shall be no recesses or projections in the walls of such passages, gangways or corridors within 5 feet of the ground.

(h)

The words 'Exit' or its vernacular equivalent shall be conspicuously fixed on the auditorium side of each doorway.

Unless the subdued lighting of the auditorium during performance referred to in these Rules is sufficient to make these notices clearly visible, each notice shall be lit by a special light to the satisfaction of the Licensing Authority.

31.

Seating.

(a)

The seating in the building shall be arranged so that there is free access to exits.

(b)

No part of the auditorium shall provide accommodation exclusive of passage, at a higher scale than 20 persons per 100 square feet.

(c)

All seats in the auditorium excepting those contained in private boxes shall be firmly secured to the floor. Chairs with folding seats shall be provided wherever required by the Licensing Authority.

Where benches are provided, the benches shall have arms suitably fixed so that each seat is separate.

(d)

In all cases, there shall be a vacant space of at least one foot between the back of one seat and the front of the seat immediately behind measured between perpendiculars.

(e)

The distance between the screen and the front row of seats should not be less than the width of the screen itself.

32.

Gangways.

(a)

A clear passage or gangway shall be formed at the sides and down the centre of the seating in every part of the auditorium in such manner that no seat shall be ten or more feet distant from a passage or gangway measured in the line of seating.

The central passage or gangway shall be at least 4 feet wide and those at the sides shall be at least 3 feet wide each.

(b)

Where possible, gradients or inclined planes shall be used instead of steps but no gradient or inclined plane shall be steeper than 1 in 10.

33.

Stairways.

(a)

There shall be at least 2 stairways each not less than 4 feet wide to provide access to any gallery or upper floor in the building which is intended for use by the public.

(b)

All staircases shall be constructed entirely of bricks, stone, cement or concrete with fire-resisting roof and ceiling and

shall have solid square (as distinguished from span drill) steps and landings of approval stone or of such other fire-resisting material and construction as may be approved by the Licensing Authority with treads not less than 11 inches wide and with risers of not more than 6 inches high (each lapping at least one inch over the back edge of the steps below it) in flights of not more than 15 or less than 3 steps.

(c)

The treads and risers of steps on each flight shall be of uniform width and height.

(d)

A continuous hand rails shall be fitted to each side of stairways.

34.

Parking arrangements.

(a)

Such arrangements shall be made for the parking of motor cars and other vehicles in the vicinity of the building as the Licensing Authority may require.

(b)

No vehicle shall be parked or allowed to stand in such a way as to obstruct exits or impede the rapid dispersal of the persons accommodated in the building in the event of fire or panic.

35.

Fire precautions.

(a)

In every licensed place shall be kept such number of chemical extinguishers, fire- buckets, hand pumps, blanket and other small fire appliances, as the Licensing Authority shall direct. The licensee shall comply with all directions issued by the Licensing Authority for the purpose of safeguarding the public in case of fire.

(b)

All fire extinguishing appliances shall at all times be maintained in proper working order and available for instant use and all chemical fire-extinguishers shall be capable of withstanding a pressure of not less than 250 lbs. per square inch.

(c)

During an exhibition, all fire-extinguishing appliances shall be in charge of some person or persons specially nominated for this purpose. Such persons need not be employed exclusively in looking after the fire appliances but they must not be given any other work during an exhibition which would take them away from the building or otherwise prevent them from being immediately available in case of danger or alarm of fire.

(d)

The building shall be provided with an efficient lighting conductor.

36.

Ventilation.

(a)

The premises shall be efficiently ventilated to satisfaction of the Licensing Authority. The auditorium shall be thoroughly ventilated between performances.

(b)

Unless the auditorium is air-conditioned the means of ventilation shall take the form of natural ventilation and power-driven exhaust fans suitably located and of adequate size for the purposes intended.

(c)

Where natural ventilation is provided by windows or sky-lights which have to be darkened or obscured, free permanent top ventilation shall be arranged by means of ridge or ceiling ventilators. The clear opening of such ventilators shall not be less than one square foot for every 10 persons than can be accommodated.

37.

Cleanliness.

(a)

The premises shall be maintained in a clean condition and the auditorium shall be swept and cleaned between performances.

(b)

Spittoons. The cinema hall shall be provided with a sufficient number of spittoons in suitable places for use of the public.

The spittoons shall contain a strong disinfectant and shall be emptied as often as necessary. Notices for using such spittoons shall be displayed in prominent parts of the cinema.

(c)

Sanitary accommodation. Urinals and privy accommodations on the scale given below for the seating accommodation of the auditorium and the staff shall be provided separately for each sex with a minimum of one urinal place or utensil for every fifty persons of each sex and one privy for every hundred persons of each sex for whom seating accommodation is provided. In calculating the number of conveniences required under this rule, any number of persons less than 50 shall be reckoned as one hundred and fifty respectively.

Provided that a minimum of one urinal place or utensil and one privy shall be provided for each sex on every premises and there shall be displayed in a conspicuous position a sign or a notice in English and in the vernacular indicating the sex for which the convenience is provided.

38.

Approved design laterines etc.

- (i) The design and description of every sanitary convenience in the premises shall be such as may be approved by the Public Works Department and the Public Health Department and its construction and situation shall be subject to the approval of the Licensing Authority.

(ii)

The site and situation of every sanitary convenience shall be such that no effluvia therefrom can arise within the rooms of the premises.

(iii)

No sanitary convenience shall communicate with any room except through the open air or through an intervening air space.

(iv)

Every sanitary convenience shall be under cover and so partitioned off as to secure privacy and shall have proper door and fastenings.

39.

Enclosure for apparatus.

- The cinematograph machine shall be placed in a permanent enclosure. Such enclosure shall be at least 10 feet in height internally from floor to roof. If one machine is to be operated, the floor space shall not be less than 63 square feet. If more than one machine is to be operated therein an additional 36 square feet shall be provided for each additional machine. The enclosure containing the cinematograph machine, in these Rules referred to as "the enclosure" shall be substantially constructed of fire resisting materials.

40.

Entrance to the enclosure and means of ventilation.

- The entrance to the enclosure shall be through a closely fitting self-closing door or fire-resisting material, suitably placed and opening outwards and all openings, bushes, and points shall be so constructed and maintained as to prevent the escape of any smoke into the auditorium. This door shall be kept closed at all times when not used for ingress or egress. Channels of ventilation shall not be allowed to communicate direct with the auditorium. The enclosure in which the machine is being operated shall be provided with an opening or vent flue in its roof or upper part of its side wall leading to the outdoor air. The vent flue shall have a minimum sectional area of 50 square inches and shall be fire-proof; Provided that when the enclosure is so built that it may be constructed to open directly on the outside of a building through a window, such window shall be permitted for the comfort of the operation but such enclosure shall not be exempted from the requirements of the installation of a vent flue (as prescribed above).

41.

Position of enclosure.

- The enclosure shall, unless this requirement is expressly waived in the licence be so placed as to be outside the main building forming the auditorium and where such auditorium consists of a structure of a temporary or non- temporary or non-permanent character the enclosure shall be at a distance of not less than 3 feet from such structure. A space of 3 feet in width at the sides and in the front of the enclosure and a space of 6 feet at the part in which the door is situated shall respectively be kept clear all round the enclosure. The door shall, where possible, be at the back of the enclosure.

42.

Opening in enclosure.

- In the front fact of the enclosure there shall not be more than three openings per projector of which the one for each projector beam must not exceed eight inches square and the other six inches square. Each shall be projected by a sheet of strong plate glass permanently fixed into the wall of the enclosure. Vertical falling steel shutters shall be fixed on the enclosure-side of each of these windows in such a way that they can be instantly released by the operator in case of need. In addition, an automatic thermostatically or electrically controlled releasing device may be fitted but such device shall not prevent emergency hand operation nor the hand operated devices to prevent automatic release. Such falling shutters shall also be operable by hand from the outside of the enclosure.

43.

No unnecessary combustible material, shall be allowed within the enclosure and all necessary combustible material, films, etc., except a film which is being passed through the lantern, shall be placed in an approved fire-proof box. The latter shall be kept closed at the times except when it is necessary to obtain or replace a film. Films which are being used at an exhibition shall be kept in the enclosure but in no case shall a quantity of films in excess of 80 lbs. be kept at one time in such enclosure, any excess being stored until required, in a separate place licensed under Explosive Rules.

44.

Smoking, light, etc.

- No smoking materials, matches or naked lights of any kind shall be permitted within the enclosure or rewinding room. Notice to this effect shall be posted conspicuously at every door of these enclosures and rooms. A 'No admission to the Public' notice shall also be similarly displaced.

45.

Enclosure, fire precautions in.

- Two liquid chemical extinguishers, two buckets of sand, two buckets of water and a blanket shall be kept inside the enclosure. A large sponge shall be kept in one of the buckets of water. One liquid chemical extinguisher shall also be kept immediately outside each door to the enclosure.

46.

Enclosure, general precautions in.

- The management and the cinematograph operators shall take all the precautions for the prevention of accidents and shall abstain from any act whatever which tends to cause fire and is not reasonably necessary for the purpose of the exhibition; no unauthorised person shall be allowed in the enclosure. The enclosure shall be kept clean and a metal bin shall be provided for waste are- carbons.

47.

Cinema machine.

- The cinematograph machine shall be placed on firm supports of fire-resisting materials.

48.

The body of the cinematograph shall either be constructed of metal or lined with metal and asbestos, in which case there must be an air space between the metal and the asbestos lining. The bottom of the cinematograph machine must form a metal tray which shall be surrounded by a vertical edge at least one inch in depth.

49.

The cinematograph shall be provided with a metal shutter which can be readily inserted between the source of light and the film gate. This shutter shall be immediately dropped in the event of any accident to the cinematograph machine or stoppage of the film and shall only be raised when the film is in motion for the purpose of projection.

50.

The film gate shall be of massive construction and provided with ample heat radiating surface and the passage for the film shall be sufficiently narrow to prevent flame travelling upwards or downwards from the light opening.

51.

Each cinematograph machine shall be fitted with two metal film boxes which shall be of substantial construction and not more than 18 inches in diameter measured internally. The film shall be made to travel from one box to the other. The boxes shall be so constructed as to close in a manner which will present the ingress of fire.

52.

Spools.

- Spools shall be chain or gear driven and film shall be so wound up on spools that the wound film shall not at any time

reach or project beyond the edges of the flanges of the spool.

54.

Electrical installation generally.

(1)

The entire electrical installation shall conform to the relevant provisions of the Indian Electricity Act, 1910, and the rules made thereunder. The layout drawing for the electrical installation work including the switch board shall be subject to prior approval of the Government Electricity Department. No work shall be commenced until the sanction of the Government Electricity Department has been obtained to what is proposed to be done.

(2)

The electrical installation throughout the premises shall be subject to the inspection by an officer of competent jurisdiction of the Department of Electricity under the powers of the Indian Electricity Act. The instructions and directions of the officer in accordance with the requirements of the Indian Electricity Act and rules and of these Rules will be notified in writing to the licensee or his agent or manager and a copy will be sent by the officer to the Licensing Authority.

55.

Electric cables and apparatus.

- There shall be no coil of slack electric cable within the enclosure of rewinding room. The cables in those rooms shall be either in armoured flexible covering or in high grade screwed steel conduit. The course of each such cable shall be readily traced. The necessary pipes and cables shall enter through efficiently bushed openings.

All switch gears, fuses and apparatus shall be covered in totally enclosed iron clad casing in accordance with the standards of the Indian Standards Institution. All such apparatus shall be thoroughly earth-bonded in accordance with the Indian Standard Code of Practice for electrical wiring and fittings in buildings.

56.

The requirements of Rule 55 shall apply to cables and apparatus fitted within the enclosure and rewinding room for electric lighting and also to any cable or apparatus used to supply electrical energy to the Sound Production Apparatus.

57.

Voltage limit.

- No electric current at a higher pressure than 250 volts shall be used within the enclosure at any time without the special written sanction of a competent authority of the Department of Electricity.

58.

Electrical circuits, separation of.

- The cables for the cinematograph machine shall be taken as a separate circuit from the source of supply and from the supply side of the main fuse in the general lighting circuit on such premises. Efficient switches and fuses shall be inserted at the point where the supply is taken and in addition, an efficient double pole switch shall be fitted in the cinematograph lamp circuit inside the enclosure.

59.

Lantern illuminant lighting.

- No illuminant other than the electric light shall be used in a cinematograph lantern.

60.

Premises, lighting of.

(a)

The general lighting of the auditorium and exit doorways and passages shall not be controlled from within the enclosure, but a duplicate lighting system may be controlled from the enclosure or a system permitted whereby not more than 2 of the general lighting is controlled from the enclosure, either system to afford sufficient lighting for emergency exit of the audience.

(b)

No fans, heaters or motors may be connected to the lighting circuits. All wall plugs and sockets must be of 3-pin type of approved Home/office hand-shield pattern and able to be plugged in one position only. All metal clad apparatus used on the socket must be earth bonded. The system of wiring employed shall be in accordance with the Indian Standard Code of Practice for electrical wiring and fittings in buildings.

(c)

Every circuit in the premises shall be identified by its description and number each Distribution Box shall contain, and

affixed within its cover, an identification card by description and number so permitting instant identification in emergency.
(d)

An emergency lighting system consisting of colza oil lamps may be provided; provided such lamps are always kept trimmed and burning during the whole of any performance and afford sufficient illumination in the opinion of the competent authority of the Department of Electricity. Each attendant shall carry an efficient electric torch or lamp.

61.

Resistances.

- Resistance frames shall be made entirely of fire resisting material and shall be so constructed and maintained that no coil or other part shall at any time become unduly heated. All resistances with the exception of resistances for "effect" (dimming) purposes; or the resistance for the regulation of the Motor Generator set for the control of the supply to the Projector Act, if that resistance be of parallel type, shall be placed outside the enclosure and if inside the auditorium, they shall be adequately protected by a wire, guard or other efficient means against accidental contact. They shall not be permitted to become so heated that a piece of dry newspaper placed in contact with any part of the resistance would ignite. The operator shall satisfy himself before the commencement of each performance that all cables, leads, connections and resistances are in proper order. The resistances, if not under constant observation, shall be inspected at least once during each performance. If any fault is detected current shall be immediately switched off and shall remain switched off until the fault has been remedied.

62.

Operators.

- Not less than there, where double machine is installed and not less than two, in case of single projector, operators shall be engaged in manipulating the projectors and one apprentice may be engaged for each machine. It shall be the duty of one of the operators to take charge of the films after they have passed over through the lantern. Each operator shall possess a certificate granted by an officer of the Department of Electricity not below the rank of an Inspector. Such certificate shall be issued on payment of a fee of Rs. 20 and shall be valid for one year unless sooner revoked; Provided that an application for the renewal of an operator's certificate shall be made at least one month before the date of the expiry of the old one, failing which a penalty of Rs. 5 for each month of default shall be leviable in addition to the annual renewal fee of Rs. 10.

An operator shall be granted a certificate unless-

(i)

he possess a minimum general education up to Cl. VIII standard and has completed two years' apprentice training in operation of Projector machine;

(ii)

he is thoroughly conversant with the municipal bye-laws and other rules relating to cinematograph exhibitions and precautions against fire;

(iii)

he is acquainted with the most speedy and effective methods of dealing with fire;

(iv)

he possesses a fair knowledge of the elements of electric power, direct and alternating current, voltage, amperage, etc., and in the case of muffasil operators, a working knowledge of petrol and oil engines if such engines are ever used for exhibitions;

(v)

he is proficient in the handling, winding, repairing and efficient cleaning of film; and

(vi)

the certificate shall bear, affixed upon it, a certified photograph of the holder.

Part III

Rules for the Licensing of Temporary and Touring Cinemas

63.

The cinematograph apparatus shall have been certified to be usable without danger by a competent authority of the Department of Electricity within a year of the date on which the exhibition is given to the public.

64.

The Licensing Authority may refuse a licence, or stop the operation of the licence, for a temporary or touring cinema if in

its opinion any portion of the building or structure is in dangerous proximity to any other building.

65.

The Licensing Authority may require an applicant for a temporary indoor cinema to furnish such plans of the premises and such specifications as it may consider necessary

66.

In the case of exhibitions given in tent or booth or in any shelter or structure composed of or covered with combustible materials or of a movable character, the cinematograph apparatus shall be operated from outside tent, booth, shelter or structure and shall be placed at a distance of at least six feet therefrom.

67.

The auditorium shall be provided with a sufficient number of exits suitably placed and designed to permit safe exit in case of alarm to the satisfaction of the Licensing Authority. Such exits shall be at a sufficient distance from the location of the projector and allied apparatus, to allow exit without passing near the projector.

A clear passage or gangway shall be kept to all such exits. No apparatus, chairs, forms, cables or other obstacles shall be placed in such passage or gangway.

Such requirements of Rule 30 as the Licensing Authority may require shall apply to premises used for occasional exhibitions.

68.

Without prejudice to the generality of the foregoing rules, no tent, booth or similar structure shall be used for the purpose of a cinematograph exhibition if it is enclosed by a wall or walls which do not permit of adequate means of egress and which are erected within 10 feet of such tent, booth or similar structure.

69.

(a)

The occupier of the premises on which the performance is to be given be responsible for the observance of the requirements of Rules 5 [except Clauses (b) and (c) of sub-rule (3)], 20 and 21 in Part I of these Rules.

(b)

The provisions of the rules in Part II of these Rules shall apply mutatis mutandis to licences for temporary and touring cinemas.

70.

These rules shall be subject to conditions of every licence and every licence shall also be issued subject to the following conditions regarding apparatus and its operation being observed:

Conditions

A. (1) The projector and the illuminant shall be entirely closed in a casing of fire resisting material except for such openings as are necessary for effective manipulation and ventilation.

(2)

Any electric wiring or terminals fitted within the casing shall be so placed that it shall be impossible for films in use in the projector to come in contact with them.

(3)

Each electric circuit on the projector shall be fitted with a separate switch controlled from outside the casing, and so placed as to be within reach of the operator when standing at the projector.

(4)

The heat of the illuminant, and its position in relation to the optical system, shall be such that it is impossible for the rays of light to ignite a stationary film.

This requirement shall be considered as met if a film stationary in the film-gate fails to ignite within a period of three minutes.

B. (1) The projector shall be fitted with film boxes of fire-resisting material, which shall be made to close in such a manner and shall be fitted with film-slots so constructed as to prevent the passage of flame to the interior of the box.

(2)

The film-boxes fitted to the projector shall be so constructed as to be easily detachable from the apparatus.

(3)

All films shall be contained in film-boxes, which shall be attachable to or removable from the projector without being opened, so that at no time shall a film be exposed except the portion necessary for trading up.

(4)

During an exhibition, not more than three film-boxes (including the two actually attached to the projector) shall be in the enclosure or reserved space, as the case may be, at any time. If further film-boxes are required, they shall be kept in closed metal boxes outside the enclosure reserved space, as the case may be, and, if in the building, in a place approved by the Licensing Authority and subject to the prescribed requirements as to limitations of quantity and weight.

C. All electric conductors shall be of adequate size for the current they have to carry and shall be efficiently covered with insulating material and shall be either (i) placed out of reach of persons in the auditorium and where they are not liable to damage, or (ii) protected against injury by suitable castings.

(2)

Resistances shall be made entirely of fire-resisting material, and shall be so constructed and maintained that no coil or other part at any time shall become unduly heated. If inside the auditorium, they shall be adequately protected by a wire guard or other efficient means of preventing accidental contact, and shall not be placed within reach of persons in the audience.

(3)

The operator shall satisfy himself before the commencement of each performance that all cables, leads, connections, resistances and fuses are in proper working order. The resistances, if not under constant observation, shall be inspected at least once during each performance. If any fault in directed current shall be immediately switched off, and shall remain switched off until the fault has been remedied.

(4)

The projector circuit shall be independently protected by a double-pole switch and fuses properly enclosed and placed near the source of supply or the point of connection with the general lighting supply, as the case may be:

Provided that where the current does not exceed five amperes and the connection of the projector circuit to the general lighting supply is made by means of connector as described in paragraph (5) below, such a connector may be used in substitution for a double-pole switch.

D. Rewinding of films. - No rewinding of films shall be done within the enclosure or reserved space, as the case may be, nor in any room or space to which the public have access or in which any illumination other than electric light in enclosed bulbs is employed. Smoking in the vicinity when rewinding is done, is prohibited.

E. Emergency lighting. - An efficient portable electric battery or torch with an efficiently protected bulb shall be available in the reserved space and in the enclosure and the rewinding room or space throughout the performance and previous or subsequent film winding or rewinding processes.

Such other lighting as the Licensing Authority may require shall be provided for the safe exit in emergency of the audience in addition to the normal lighting system installed in the premises.

F. Location of projector and allied apparatus. - (1) No portable apparatus shall be so placed in any auditorium or communication passage way as to interfere with entrance and exit of the audience nor so that any ignition of film might prevent safe exit.

The Projector shall be placed on a firm support.

(2)

Amateur Standard Apparatus. - No projector other than an Amateur size projector shall be used on any premises within the auditorium unless provided with either permanent or temporary enclosure.

(3)

(i)

Reserved space. - If such an Amateur size projector be worked without an enclosure it shall be situated within a space known as the 'Reserved Space' into which no person other than the operators shall be allowed during an exhibition. This space shall be ample for the operators and the necessary apparatus and safety utensils.

(ii)

"Fire precautions in reserved space with Amateur Standard Projector. - One bucket of sand, one bucket of water and a blanket shall be kept within the reserved space. A large sponge shall be kept in the bucket of water. No naked light nor any light other than an efficiently protected electric bulb light, no matches or smoking materials shall be within the reserved space.

(4)

Full size apparatus. - Such apparatus usually of 36 mm width or over shall, if placed within the auditorium or in any

portion of the premises or where persons other than the operators resort during performances, only be used within the approved type of permanent enclosure for permanent cinemas or within the temporary enclosure of condition G below: Provided that the operation of a full sized apparatus shall not be permissible from a room adjoining an auditorium unless that room complies in every respect with the requirements for a cinema enclosure; Provided further that the operation of a full sized apparatus without enclosure shall be permissible from a verandah of a building under the following conditions:

(i)
The verandah be of fire-resisting material in any part within ten feet of the apparatus.

(ii)
No person other than the operators are allowed on the verandah within ten feet of the apparatus.
The area so formed shall be a reserved space.

(iii)
The doorway, window or other aperture through which the beam of light is protected be securely closed throughout the exhibition with a fire-resisting screen in which shall be not more than two orifices for the operation of the apparatus. Such orifices shall not be larger than 8 inch by 8 inch, and each shall be provided with a stout sheet of glass further protected by a falling shutter of fire-resisting material in such a way that each can be instantly released by the operator in case of need.

(iv)
Any other doorway, window or aperture within ten feet of the apparatus be entirely blocked with a fire-resisting screen in which there shall be no opening of any description.

(v)
If a doorway be blocked under the provisions of sub-Clauses (iii) and (iv) above, there shall be available other doorways in sufficient number and so placed as to ensure ready entrance and exit to the audience from the auditorium.

(vi)
Fire precautions at the projector. - No drapery and no unprotected combustible materials other than such materials as may compose the floor shall be within ten feet of the cinematograph, nor shall naked lights, matches or smoking utensils or tobacco be taken within the reserved space of (ii) above. Two chemical fire extinguishers, two buckets of water, one of which shall contain a large sponge and a blanket shall be kept at the projector.

G. Temporary enclosure. - The requirements for a temporary enclosure are as follows:

(1)
Construction. - A smoke proof box constructed of sheet iron or steel on a substantial frame work and securely fastened together. The internal height from floor to roof shall be at least 8 feet. If one machine is to be operated the floor space shall not be less than 48 square feet. If more than one machine is to be operated therein an additional 24 square feet shall be provided for each additional machine. The enclosure shall otherwise itself conform in every other respect to a permanent enclosure:

Provided that, if the temporary enclosure be kept in "Situ" or stored on the premises and does not travel with a portable apparatus thereby avoiding risk of breakage, such enclosure may be asbestos sheeting or other approved type of fire-resisting material on a substantial fire-resisting frame work.

(2)
Electrical and other accessory apparatus. - All apparatus situated therein shall similarly conform to that in a permanent enclosure, subject to such apparatus being of a portable and not of a permanently fixed nature.

(3)
General working. - The requirements regarding care in working, fire-fighting appliances, prohibition of inflammable materials, lights, matches, smoking utensils, film rewinding and admission of the public prescribed for permanent enclosure in permanent cinemas shall apply to temporary enclosure for occasional exhibitions.

71.
The licensee of touring cinemas may shift the venue of the exhibition from place to place after giving the intimation of his programme and itinerary in advance to the Licensing Authority; provided that all the rules and safety requirements are duly observed.

72.
Where the shows are held by the management of industrial concerns for the benefit of labour in industrial areas or by

academic or cultural institutions, [* * * *] such shows shall not be utilised by the licensee for making profit.

Part IV

73.

Revocation or suspension of licence.

(1)

The Licensing Authority may at its discretion revoke or suspend the licence granted to any cinema within its jurisdiction if it is satisfied-

(a)

that the licence was obtained through fraud or misrepresentation; or

(b)

that the licence has committed a breach of any of the provisions of the Act or the rules made thereunder or any condition or restriction contained in the licence or of any direction issued under sub-section (2) of Section 5 of the Act; or

(c)

that the building and installations are not maintained in proper order; or

(d)

that the cinema is used or conducted in a manner prejudicial to the public interest:

Provided that the Licensing Authority shall give the licensee an opportunity to show cause before taking any action under this sub-rule.

(2)

Appeal under Section 9 of the Act. - Where the order suspending, cancelling or revoking a licence under the preceding clause has been passed by a Licensing Authority any person aggrieved by the order may, within the period prescribed under Section 9 of the Act prefer an appeal on payment of fees of Rs. 40 and Rs. 3 for each of the permanent and temporary (including open air and touring) cinema licences respectively to the State Government which may pass such order as it thinks fit. The order of the State Government shall be final.

74.

Exemption for existing cinema houses.

- The Licensing Authority may in individual cases exempt any permanent cinema house which has been in existence before the commencement of these Rules from any provisions of these Rules which he may find after due enquiry to be not practicable to be complied with.

Form A

No Objection Certificate

[Rule 4]

In exercise of the powers conferred by Rule 4 (ii) of the Assam Cinema (Regulation) Rules, 1960, I.....Deputy Commissioner of.....District do hereby grant his certificate that 'there is no objection to Shri of.....P.S. in.....District constructing a cinema house at.....of.....village/P.S.....in.....district according to the approved plan and the site plan herewith enclosed.

This "No objection certificate" is valid for a period of one year from the date hereof and if within this period the proposed cinema house is not constructed, a fresh "no objection certificate" should be applied for.

This certificate does not of itself authorise the use of the proposed building for cinematograph for cinematographic exhibition nor does it by any means guarantee the issue of a cinema licence which depends on separate application.

Deputy Commissioner.....

Form B

Form of Licence (Permanent Cinemas)

[Rule 6]

No.....

[.....]

[Name of theatre etc.]

situated at [.....]

[Address]

within the district of is licensed under Section 5 of the Assam Cinemas (Regulation) Act, 1953 (Assam Act XIV of 1953), as a place where exhibitions by means of a cinematograph may be given.

This licence has been granted to [.....]

[Name of applicant.]

and shall remain in force until the.....provided that the said [.....]

[Name of applicant.]

owns, leases or manages the said [.....]

[Name of theatre etc.]

The licence is granted subject to the provisions of the Assam Cinemas (Regulation) Act, 1953 and of the rules made thereunder and to the conditions set forth in the attached Schedule.

Deputy Commissioner of.....

The 19.....

Form C

Form of Licence (Temporary Indoor Cinemas)

[Rule 9]

No.

Shri/Shrimati [.....]

[Name of theatre etc.]

of [.....]

[Address]

within the districts of.....is licensed under Section 5 of the Assam Cinemas (Regulation) Act, 1953 (Assam Act XIV of 1953) to hold temporary indoor exhibitions by means of cinematograph.

This licence shall remain in force only for a period of from the date thereof. The licence is granted subject to the provisions of the Assam Cinemas (Regulation) Act, 1953 and of the rules made thereunder and to the conditions set forth in the attached Schedule.

Deputy Commissioner of.....

The 19.....

Form D

Form of Licence (Temporary Open Air Cinemas/Touring Cinemas)

[Rules 12 and 15]

No.

Shri/Shrimati [.....]

[Name of theatre etc.]

of [.....]

[Address]

within the district of.....is licensed under Section 5 of the Assam Cinemas (Regulation) Act, 1953 (Assam Act XIV of 1953) to hold temporary exhibitions in the open air by means of a cinematograph.

This licence shall remain in force only for a period of from this date thereof.

This licence is granted subject to the provisions of the Assam Cinemas (Regulation) Act, 1953 and of the rules made thereunder and to the conditions set forth in the attached Schedule.

Deputy Commissioner of.....

The 19.....

of Conditions and Restrictions

1. The licensee shall be responsible for punctual submission of quarterly statements of cinema collections in prescribed form to the Licensing Authority for onward transmissions to the officer-in-charge of Distributing. Films Division, Ministry of Information and Broadcasting, Government of India.

2. The number of persons admitted or any one time into any part of the licensed place shall not exceed the number specified below as the number of persons who may be accommodated in such part

[The Licensing Authority will here enter the number of persons who may be admitted into the several parts of the building as required under Rule 26 (b)]

3. Every licensee shall, if so required by the Licensing Authority, be bound to exhibit films produced by the producers of Assam or films dealing with matters relating to Assam for such period of time as may be required by the Licensing Authority.

4. The licensee shall so regulate the exhibition of cinematograph films that at every performance open to the public approved films are exhibited, the approved films to be exhibited in relation to other films at every such performance being in the same proportion as one is to five or the nearest lower or higher approximation thereto.
5. Only such films produced in India as are certified by the Central Government with the previous approval of the Film Advisory Board, Bombay, to be scientific films intended for educational purposes, films dealing with news and current events or documentary films shall be deemed to be approved films for the purposes of these directions.
6. Nothing contained in these directions shall be construed as requiring the licensee-
- (a)
to exhibit at any performance more than 2,000 feet of approved films of 35 mm. size or the corresponding footage of approved films of 16 mm. size; or
- (b)
to exhibit any approved film which has been show for more than two weeks continuously;
- (c)
to re-exhibit any approved film which has been shown for two continuous weeks; or
- (d)
to exhibit approved films to the full extent indicated hereinbefore in the event of sufficient number or length of approved films not being available for the time being.
7. For the purpose of computing the corresponding footage of films of 16 mm. size in relation to films of 35 mm. size, 400 feet of films of 16 mm. size shall be deemed to be equivalent to 1,000 feet of films of 35 mm. size.
8. The licensee shall not display or cause to be displayed any photographs, picture or poster which depicts or represents or purports to represent a scheme or shot which has been excised from any film under the order of the Central Board of Film Censors or the Central Government.
9. The licensee shall not exhibit or permit to be exhibited in the cinema-
- (a)
any film other than a film which has been certified by the Board of Film Censor as suitable for unrestricted public exhibition or for public exhibition restricted to adults and which, when exhibited, displays the prescribed mark of the Board and has not been altered or tampered with in any way since such mark was affixed thereto;
- (b)
any film which has been certified by the Board of Film Censors as suitable for public exhibition restricted to adults, to any person is not an adult.
- [Note. This condition shall not be construed as prohibiting the exhibition of a film in respect of which an 'A' certificate has been granted to children in arms below the age of three].
10. Posters and pictorial publicity materials pertaining to cinematograph films which are a gross misrepresentation of the film itself and which even when not clearly obscene or objectionably suggestive, shall not be displayed in cinema hall.
11. No posters, advertisement, sketch, synopsis or programme of a film shall be displayed, sold or supplied either in or anywhere outside the licensed place which is likely to be injurious to morality or to encourage or incite to crime or to lead to disorder to offend the feelings of any section of the public or which contains offensive representative of living persons.
12. The licensee shall not exhibit or permit or cause to be exhibited in the cinema any slide which displays any advertisement which is of an indecent or obscene nature or the publication of which is prohibited under any law for the time being in force.
13. Save as the Licensing Authority may by written order permit, no loudspeaker, gramophone, band, drum, bell, horn, whistle, siren or musical instrument of any kind shall be employed or allowed to be used as an advertisement or to attract attention in or outside the licensed place, nor shall any device be employed which is designed or serves to deliver the entertainment to persons outside the licensed place.
14. At least 48 hours before any film is exhibited, the licensee shall supply a synopsis of the contents of the films to the District Magistrate of the District in which the licensed place is situate.
15. The licensee shall nor without the permission of the Licensing Authority, assign, sublet or otherwise transfer the licence, the licensed place or the cinematograph, nor shall the licensee without permission as aforesaid, allow any other person during the period of currency of the licence, to exhibit films in licensed place.
16. Any accident, fire or explosion occurring within the licensed premises which is attended with loss of human life or serious injury to persons or property shall be reported immediately to the nearest Magistrate or to the Officer-in-charge

of police station and by telegraph or telephone where such means of communication are available.

17. Free access to the licensed premises shall be given at all reasonable times to an Inspector and facility shall be afforded to such Inspector for ascertaining that the rules and conditions are duly observed.

18. Adequate precaution shall at all times be taken for the prevention of accident by fire on explosion and no smoking, fire or light or articles capable of causing fire to film shall be permitted to any time within the licensed premises

19. If the Licensing Authority calls upon the holder of a licence by a notice in writing, to execute any repairs to the licensed premises which are in the opinion of such authority necessary or the safety of the premises, the holder of licence shall execute the repairs within such period, not being less than one week from the date of receipt of notice, as may be fixed by the notice.

20. Not more than four shows shall be held at the place licensed between 3 p.m. and mid-night on any week days.

Outside these hours i.e. before 3 p.m. or after mid-night no show shall be allowed at the place licensed on any week days;

Provided that no films certified or public exhibition restricted to adults only shall be exhibited during the 3 p.m. shows on week days.

Note. - There will be no restriction on the number of shows in a day on Sundays and public holidays; provided that no show shall be allowed after mid-night.

21. The licensee shall not store inflammable film in quantity exceeding 200 lbs. at the place licensed unless a separate licence for the storage of such films has been obtained by him from the Chief Inspector of Explosives.

22. Films shall be stored.

(i)

in a storage shed constructed of suitable unflammable materials, the doors and ventilators may be of wood and shall open outwards; or

(ii)

in a tent, placed on private ground and separated by a distance of not less than 25 feet from any dwelling house, other building, highways, street or public place.

23. The storage shed shall not form part of, or be attached to any building in which any person resides or works or where persons assemble for any purpose unless it is separated therefrom by a substantial floor or partition.

24. The storage shed, if any, or building, shall not be situated under any staircase or under any other means of exit likely to be required to be used for escape in case of fire.

25. The storage shed shall be adequately ventilated near the ground level and also near or in the roof. All ventilators shall be fitted with metal girds or similar suitable protection on the outside face of the wall and a layer of No. 16 mesh brass or other non-corroding metal wire gauze on the inside face of the wall.

26. The storage shed shall not be used for any other purpose.

27. (i) All operations connected with examination, repairing, cleaning, waxing or re-winding of film shall only be carried out in the examination room which shall not be used for any other purpose and shall be separated from the storage shed by a partition.

(ii)

The examination room shall be constructed of fire resisting materials only and well ventilated to the outside air.

(iii)

Not more than two rolls of film shall only be opened for examination at any one time per examiner and not more than 100 rolls in all shall be under examination or repair at any one time.

28. All film waste and scrap in the examination room shall be placed immediately in a strong metal receptacle fitted with a right hinged lid and marked 'Film Waste' and kept under water until disposed of. The contents of the drums shall be disposed of at frequent intervals by burning under adequate precautions or in such other manner as may be prescribed by the Licensing Authority.

29. No alterations shall be carried out in the storage shed or examination room without the previous sanction in writing of the Licensing Authority. Such alterations so sanctioned shall be shown on an amended plan to be attached to this licence.

30. The furniture and other articles shall be so arranged as to afford free egress to persons in the room in the event of fire.

31. There shall be kept posted up in large characters in the room-

(i)

full instruction as to the action to be taken in case of fire; and

(ii)

full directions as to the means of escape from the room in case of fire.

32. No two sheds for the storage of film shall adjoin each other or be in the same building.

33. The licensee shall comply with such other conditions as may be prescribed from time to time by rules.

Related AI tags, queries and research notes

Translation